HONORABLE ROBERT J. BRYAN

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON
AT TACOMA

AILA CURTIS, et al.,

Plaintiffs,

v.

JAY ROBERT INSLEE, et al.,

Defendants.

No. 3:23-cv-05741-RJB

DEFENDANT GOVERNOR JAY INSLEE'S RESPONSE TO ORDER FOR SUPPLEMENTAL BRIEFING REGARDING PLAINTIFFS' RULE 59(e) MOTION TO ALTER OR AMEND RULING, OR IN THE ALTERNATIVE, MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

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On February 5, 2024, the Court requested supplemental briefing to address how the Ninth Circuit's just-issued decision in *Maney v. Brown*, --- F.4th ----, Nos. 22-35218, 22-35219, 2024 WL 371574 (9th Cir. Feb. 1, 2024), impacts Plaintiffs' Rule 59(e) Motion to Alter or Amend Ruling or in the Alternative Motion for Leave to File Second Amended Complaint (the "Motion"). *Maney*—which holds that Oregon Governor Kate Brown is entitled to PREP Act immunity for claims broadly related to the "administration" of COVID-19 vaccines—confirms that Plaintiffs cannot state a claim for relief and the Motion should be denied.

In the Motion, Plaintiffs asked the Court to revive their dismissed claims and seek to add a new cause of action based on the assertion that (despite the undisputed FDA approval of the Pfizer vaccine) the only vaccines available to them were "covered countermeasures" under the PREP Act.[1] *See* Mot. at 3–4; Dkt. #38-2 ¶140. But *Maney* makes clear that this argument only undermines Plaintiffs' claims because: (1) Governor Inslee (like Governor Brown) is entitled to PREP Act immunity from claims concerning such "covered countermeasures"; and (2) the sole exception to this immunity requires, inter alia, "death or serious physical injury," which Plaintiffs have not alleged. In sum, Plaintiffs cannot state a claim under the PREP Act.

Governor Inslee is entitled to PREP Act immunity. The PREP Act provides that a "covered person shall be immune from suit and liability under Federal and State law with respect to all claims for loss caused by, arising out of, relating to, or resulting from the administration to . . . an individual of a covered countermeasure." 42 U.S.C. § 247d-6d(a)(1). *Maney* holds that that this immunity applies broadly to "administrative activities other than the physical act of directly injecting a particular person with a vaccine," including "policy-level" functions like the "prioritization of [a] countermeasure when its supply is limited." 2024 WL 371574, at *4. Accordingly, the PREP Act "extend[s] immunity to persons who make policy-level decisions regarding administration or use of covered countermeasures and do not directly administer

[1] The Motion asserts that the vaccines are "EUA/PREP Act drugs" governed by the PREP Act, Mot. at 2, 6–7, and Plaintiffs' First Amended Complaint and proposed Second Amended Complaint specifically classify them as "covered countermeasures" under the PREP Act, Dkt. #8 ¶ 59; Dkt. #38-2 ¶¶ 134, 137, 139.

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countermeasures to particular individuals." *Id*. And the immunity applies to "any claim for loss that has a causal relationship with the administration to or use by an individual of a covered countermeasure," including "constitutional claims brought under 42 U.S.C. § 1983." *Id*. at *2, *3 (quoting 42 U.S.C. § 247d-6d(a)(2)(B)).

In reaching this conclusion, the Ninth Circuit reasoned that "the Act provides that the scope of immunity . . . includes various activities with a causal relationship to the administration of a countermeasure beyond injecting someone with a vaccine"—such as "distribution"—which "are multiple links removed in the chain of events from the ultimate injecting of an individual with a vaccine." *Id*. (citing 42 U.S.C. § 247d-6d(a)(2)(B). It further noted that "the Act defines the term 'covered person,' . . . to include a 'program planner of such countermeasure,'" including "a state government, [and] a person employed by a state government[.]" *Maney*, 2024 WL 371574, at *5 (quoting 42 U.S.C. §§ 247d-6d(i)(2)(B)(iii), (i)(6)).[2] And it adopted the U.S. Health and Human Services Secretary's definition of "administration," which includes "activities and decisions directly relating to . . . management and operation of countermeasure programs." *Id*. at *4 (quoting 85 Fed. Reg. at 79197)).

Like the state policy at issue in *Maney*—which prioritized prison guards' access to COVID-19 vaccines over inmates—the Proclamation is a "policy-level" program related to the "administration" of COVID-19 vaccines that comes within the PREP Act's immunity. That the Proclamation may be "multiple links removed in the chain of events from the ultimate injecting of an individual with a vaccine" is irrelevant; the PREP Act's "unambiguously . . . broad scope of immunity" reaches the Proclamation. *Id*. at *6. And, like Governor Brown, Governor Inslee is a "covered person" entitled to immunity. *Id.* *5 (noting that "covered person" includes "a state government, a person employed by a state government, [and] 'a person who supervised or

[2] *Maney* also noted that, consistent with this statutory text, the U.S. Secretary of Health and Human Services' declaration of medical emergency for COVID-19 defines "administration" of a vaccine "to include . . . 'activities and decisions directly relating to . . . management and operation of countermeasure programs," and defines "covered person" to include a "governmental program planner."2024 WL 371574, at *4 (quoting 85 Fed. Reg. at 79195, 79197).

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administered a program with respect to the administration' of a countermeasure." (quoting 42 U.S.C. § 247d-6d(i)(6)).

Rather than saving their complaint, Plaintiffs' attempt to classify the Pfizer vaccine as a "PREP Act drug," Mot. at 2, confirms Governor Inslee's entitlement to immunity. 42 U.S.C. § 247d-6d(a)(1). Because Plaintiffs' arguments only provide an independent basis to dismiss their claims, the Court should deny the Motion.

Plaintiffs cannot state a PREP Act claim that would evade this immunity. *Maney* also confirms that Plaintiffs cannot state a "claim under the PREP Act pursuant to § 1983." Dkt. #46 at 1. As Governor Inslee previously argued, Dkt. #43 at 12, the PREP Act is primarily an immunity statute that "carves out one 'exception to the immunity' . . . 'for death or serious physical injury proximately caused by willful conduct'"—which Plaintiffs cannot and do not allege. *Maney*, 2024 WL 371574, at *6 (quoting 42 U.S.C. § 247d-6d(d)(1)).[3] And while "[t]hat exception may provide a remedy for constitutional claims that involve willful misconduct," it "does not categorically exempt federal constitutional claims from the Act's protection." *Id.* at *6. Because Plaintiffs cannot satisfy the elements of a PREP Act claim—the sole exception to Governor Inslee's immunity— Dkt. #43 at 13–14, the PREP Act forecloses all of Plaintiffs' claims, including their federal constitutional claims under § 1983. *Maney*, 2024 WL 371574, at *6.

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Maney confirms that Plaintiffs are incapable of stating a claim for relief against Governor Inslee and that the Court's dismissal of their claims was correct as a matter of law. The Court should deny the Motion.

[3] Plaintiffs' PREP Act claim also fails because they have not brought suit in the U.S. District Court for the District of Columbia, which is the exclusive venue for such a claim, and have not provided the required physician's affidavit and certified medical records documenting the alleged injury. 42 U.S.C. § 247d-6d(d)(1), (e)(1), (e)(1), (e)(4).

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